

CHAPTER 27

An Act to increase the amount of the advances which may be made under section twelve of the New Towns Act, 1946. [26th June, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same as follows :—

Advances to
Development
Corporations.
9 & 10 Geo. 6.
c. 68.

1. In the proviso to subsection (1) of section twelve of the New Towns Act, 1946 (which imposes a limit of fifty million pounds in respect of the aggregate amount of advances which may be made under that subsection to Development Corporations), for the words "fifty million pounds" there shall be substituted the words "one hundred million pounds".

Short title
and citation.

2. This Act may be cited as the New Towns Act, 1952, and the New Towns Act, 1946 and this Act may be cited together as the New Towns Acts, 1946 and 1952.

CHAPTER 28

An Act to make provision with respect to the use of eyes of deceased persons for therapeutic purposes. [26th June, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Removal
of eyes of
deceased
persons.

1.—(1) If any person, either in writing at any time or orally in the presence of two or more witnesses during his last illness, has expressed a request that his eyes be used for therapeutic purposes after his death, the party lawfully in possession of his body after his death may, unless he has reason to believe that the request was subsequently withdrawn, authorise the removal of the eyes from the body for use for those purposes.

(2) Without prejudice to the foregoing subsection, the party lawfully in possession of the body of a deceased person may authorise the removal of the eyes from the body for the purpose aforesaid unless that party has reason to believe—

(a) that the deceased had expressed an objection to his eyes being so dealt with after his death, and had not withdrawn it; or

(b) that the surviving spouse or any surviving relative of the deceased objects to the deceased's eyes being so dealt with.

(3) An authority given under this section in respect of any deceased person shall be sufficient warrant for the removal of the eyes from the body and their use for the purposes aforesaid; but no such removal shall be effected except by a registered medical practitioner, who must have satisfied himself by a personal examination of the body that life is extinct.

(4) Authority for the removal of eyes shall not be given under this section if the party empowered to give such authority has reason to believe that an inquest may be required to be held on the body.

(5) No authority shall be given under this section in respect of the body of a deceased person by a person entrusted by another person with the body for the purpose only of its interment or cremation.

(6) In the case of a body lying in a hospital, any authority under this section may be given on behalf of the person having the control and management of the hospital by any officer or person designated in that behalf by the first-mentioned person.

(7) Nothing in this section shall be construed as rendering unlawful any dealing with, or with any part of, the body of a deceased person which would have been lawful if this Act had not passed.

(8) In the application of this section to Scotland for subsection (4) there shall be substituted:—

“(4) Nothing in the foregoing provisions of this section shall authorise the removal of eyes from a body in any case where the procurator fiscal has objected to such removal.”

2.—(1) This Act may be cited as the Corneal Grafting Act, 1952.

(2) This Act shall not extend to Northern Ireland.

Short title,
extent and
commence-
ment.

(3) This Act shall come into force three months after the passing of this Act.

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